



United States
Attorney's Office
Northern District of Ohio



North Ridgeville Doctor Pleads Guilty to Healthcare Fraud Conspiracy

Friday, April 11, 2025

For Immediate Release

U.S. Attorney's Office, Northern District of Ohio

Scheme billed Medicare more than \$14M for unnecessary medical equipment and lab tests

CLEVELAND – An Ohio doctor has pleaded guilty to his role in a conspiracy that prescribed medical equipment and lab tests for patients who did not need them and then submitted claims to Medicare to receive payment. Medicare is a federal health benefit program administered under the U.S. Department of Health and Human Services (HHS) and most notably covers beneficiaries aged 65 and older.

According to court documents, Timothy Sutton, 43, of North Ridgeville, Ohio, admitted that he and other co-conspirators engaged in a scheme to fraudulently bill more than \$14.5 million in payments from Medicare. Sutton was employed by two telemedicine companies; Real Time Physicians, LLC, based in Nevada, and 24 Hour Virtual MD, LLC, based in Florida. The companies provided Sutton with pre-completed orders for durable medical equipment (DME), such as braces, and/or cancer genetic testing (CGX) for him to approve and digitally sign. In doing so, he affirmed that he had examined patients using a telemedicine platform and determined that they needed DME or that CGX testing was necessary. In truth, he never examined any of the patients who resided throughout Ohio and Florida.

Once Sutton prescribed the equipment or ordered testing, Real Time Physicians and 24 Hour Virtual MD furthered the conspiracy by forwarding the orders to companies under their control or sold the orders to other medical entities to provide DME or conduct the lab testing. Sutton defrauded Medicare by submitting claims that were not reasonable and necessary for medical treatment and did not comply with Medicare rules and regulations or applicable federal laws.

On April 4, 2025, Sutton pleaded guilty to attempt and conspiracy to commit wire fraud and bank fraud, false statements related to health care matters, and aggravated identity theft. He faces a maximum penalty of 27 years in prison. Sentencing is scheduled for July 26, 2025. A federal district court judge

will determine any sentence after considering the U.S. Sentencing Guidelines and other statutory factors.

This case was investigated by the U.S. Department of Health and Human Services-Office of the Inspector General, and the FBI Cleveland Division. In the Northern District of Ohio, Assistant U.S. Attorneys **Om Kakani** and **Rebecca Lutzko** are prosecuting the case.

About the Northern District of Ohio

The U.S. Attorney's Office for the Northern District of Ohio covers the 40 northern-most counties in the state of Ohio, which is home to nearly six million people. The office operates from its main headquarters in Cleveland, with additional branches in Akron, Toledo, and Youngstown. The U.S. Attorney serves as the chief federal law enforcement officer in the District and oversees the prosecution of federal crimes and protect victims' rights.

Contact

Jessica Salas Novak

Jessica.Salas.Novak@usdoj.gov

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Topic

HEALTHCARE FRAUD

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